

Court No. - 4

Case :- WRIT - C No. - 9534 of 2020

Petitioner :- Mohd Mubeen @ Hazi Mohammad Mubeen

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Janardan Prasad Tripathi

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Bala Krishna Narayana, J.

Hon'ble Vivek Varma, J.

Heard learned counsel for the petitioner, learned Standing Counsel for respondent nos.1 and 4 and Sri Baleshwar Chaturvedi, learned counsel for respondent nos.2 and 3.

This writ petition has been filed by the petitioner with the following prayers :-

"I. Issue a writ, order or direction in the nature of certiorari calling for the records of the case and to quash the impugned recovery citation issued by the respondent no.4 on 28.11.2019 (Annexure No.4) of Rs. 279895+ other charges.

II. Issue any other writ, order or direction, which this Hon'ble Court may deem fit and consider proper under the circumstances of the case.

III. Award the cost of the instant writ petition to the petitioner."

Record shows that before filing the instant writ petition, the petitioner had earlier approached this Court by filing Writ - C No.37469 of 2019, which was finally disposed of by the following order passed by another Co-ordinate Bench of this Court dated 21.11.2019 :-

"This writ petition has been filed, inter alia, for the following relief:

"Issue a writ, order or direction in the nature of certiorari quashing the impugned final assessment order dated 8.4.2019 (annexure no. 3) passed by respondent no. 2 as well as impugned provisional assessment order dated 23.2.2019 (Annexure no. 1) passed by respondent no.3.

Heard the learned counsel for the petitioner and Mr. Baleshwar Chaturvedi, learned counsel for the Electricity Department and perused the record.

Learned counsel for the petitioner has submitted that against the provisional assessment order dated 23.2.2019, the petitioner filed his objection on 11.3.2019 but the impugned final assessment order dated 8.4.2019 was passed without considering the objection of the petitioner, though the objection of the petitioner was already on record and the impugned final assessment order was passed after 27 days of filing of the objection of the petitioner, completely overlooking the provisions contained under the U.P. Electricity Supply Code 2005. He further submits that since the objection of the petitioner was already on record when the

impugned final assessment order was passed, there was no justification on the part of the respondent no.2 to have passed the said order without considering the said objection and as such the authority concerned has committed manifest illegality while passing the impugned order and therefore the same is liable to be quashed. We find substance in the submission so made by the learned counsel for the petitioner.

In view of the above, the writ petition is allowed. The impugned assessment order dated 8.4.2019 is hereby quashed.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 12.12.2019 at 11.00 A.M. before the Respondent No.2, Executive Engineer along with his objection/representation and adduce his evidence, if any, in support of his contention. The Respondent No. 2, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of two weeks thereafter.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed, the impugned final assessment order dated 8.4.2019 shall stand revived automatically. "

Record further shows that the respondent no.2 in compliance of the order passed by this Court on 21.11.2019, has passed a final assessment order against which the petitioner has already filed an appeal.

The grievance of the petitioner is that although the assessment order dated 8.4.2019 was quashed by this Court, yet respondent no.4 issued a recovery certificate in pursuance thereof on 28.11.2019, which is *per se* illegal and deserves to be quashed.

Per contra, Sri Baleshwar Chaturvedi, learned counsel for respondent nos.2 and 3 submitted that since the petitioner has already filed an appeal against the final assessment order, he can always approach the appellate authority for interim relief.

Having heard learned counsel for the parties and perused the material brought on record, we find force in the submission made by Sri Baleshwar Chaturvedi. There is no dispute about the fact that the final assessment order has been passed against the petitioner by respondent no.2 and against which the petitioner has already availed a statutory remedy available to him under the law.

In view of above, we do not find it to be a fit case for interference. However, the petitioner shall be at liberty to

approach the appellate authority for grant of any relief which he so desires.

Subject to aforesaid observations, the petition stands disposed of.

Order Date :- 16.6.2020

Shalini